

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1589

By: Gollihare of the Senate

and

Hilbert and Fetgatter of
the House

6
7
8
9 An Act relating to crimes and punishments; amending
10 21 O.S. 2021, Section 941, as amended by Section 226,
11 Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
12 941), which relates to gambling; defining terms;
13 modifying scope of certain offense; updating
14 statutory language; updating statutory reference; and
15 providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 21 O.S. 2021, Section 941, as
18 amended by Section 226, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
19 2025, Section 941), is amended to read as follows:

20 Section 941. A. For purposes of this section:

21 1. "Online casino games" means any gambling game that allows a
22 person to access the Internet, World Wide Web, or any part thereof
23 by way of a computer, computer system, computer network, computer
24 software, computer terminal, or similar device including, but not
 limited to, a cellular or mobile telephone, a smart or electronic

1 watch, or a tablet that, upon risking any representative of value,
2 simulates any gambling game described in this section or any other
3 form of gambling including, but not limited to, a slot machine as
4 defined in Section 964 of this title, a lottery as defined in
5 subsection A of Section 1051 of this title, a bingo game or U-PIK-EM
6 bingo game as defined in paragraphs 1 and 22 of Section 402 of Title
7 3A of the Oklahoma Statutes, or any prohibited game as described in
8 subsection H of Section 262 of Title 3A of the Oklahoma Statutes;
9 and

10 2. "Representative of value" includes any and all currency used
11 as part of a dual-currency system of payment that allows a person to
12 exchange such currency for any prize, award, cash, or cash
13 equivalent, or any chance to win any prize, award, cash, or cash
14 equivalent.

15 B. Except as provided in the Oklahoma Charity Games Act or as
16 otherwise authorized to be conducted on Indian lands in compliance
17 with the Indian Gaming Regulatory Act, 25 U.S.C., Section 2701 et
18 seq., every person who opens, or causes to be opened, or who
19 conducts, whether for hire or not, or carries on either poker,
20 roulette, craps, or any banking or percentage, or any gambling game
21 played with dice, cards, or any device including, but not limited
22 to, online casino games, for money, checks, credits, or any
23 representatives of value, or who either as owner or employee,
24 geolocation provider, gaming supplier, platform provider, promoter,

1 or media affiliate, whether for hire or not, deals or provides
2 support for those engaged in any such game, shall be guilty of a
3 Class C2 felony offense, and upon conviction ~~thereof~~, shall be
4 punished by a fine ~~of~~ not less than Five Hundred Dollars (\$500.00),
5 nor more than Two Thousand Dollars (\$2,000.00), and by imprisonment
6 as provided for in subsections B through ~~F~~ E of Section 20M of this
7 title.

8 SECTION 2. This act shall become effective November 1, 2026.

9
10 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
11 OVERSIGHT, dated 04/14/2026 - DO PASS.
12
13
14
15
16
17
18
19
20
21
22
23
24